



February 4, 2026

ENGROSSED HOUSE BILL No. 1150

DIGEST OF HB 1150 (Updated February 3, 2026 9:50 am - DI 140)

Citations Affected: IC 32-25.5; IC 36-1; IC 36-7.

Synopsis: Local regulation. Provides that a homeowners association's governing documents may not include a covenant, policy, or similar measure that: (1) prohibits or restricts the use of; (2) distinguishes between types of; or (3) results in differing standards for different types of; motor vehicles or outdoor equipment based on the fuel source that powers the motor vehicle or outdoor equipment. Prohibits a county or municipality from adopting or enforcing a utility usage data ordinance. Prohibits a county, municipality, or township from adopting or enforcing an ordinance, order, regulation, resolution, policy, or similar measure that: (1) prohibits or restricts the use, sale, or lease of; (2) distinguishes between types of; or (3) results in differing regulatory standards for different types of; motor vehicles or machines other than vehicles, including outdoor equipment, based on the fuel source that powers the motor vehicle or machine. Requires political subdivisions located within five miles of the end of a runway of a publicly owned, public use airport to adopt an airspace overlay zoning ordinance.

Effective: Upon passage; July 1, 2026.

Pressel, Soliday, Jordan

(SENATE SPONSORS — FREEMAN, BALDWIN)

January 5, 2026, read first time and referred to Committee on Roads and Transportation.
January 12, 2026, amended, reported — Do Pass.
January 15, 2026, read second time, ordered engrossed.
January 16, 2026, engrossed.
January 20, 2026, read third time, passed. Yeas 65, nays 23.

SENATE ACTION

January 26, 2026, read first time and referred to Committee on Homeland Security and Transportation.
February 3, 2026, reported favorably — Do Pass.

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February 4, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED HOUSE BILL No. 1150

A BILL FOR AN ACT to amend the Indiana Code concerning local government.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 32-25.5-3.6 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:

4 **Chapter 3.6. Homeowners Association Restrictions on Outdoor**
5 **Equipment**

6 **Sec. 1. As used in this chapter, "motor vehicle" means a vehicle**
7 **that is:**

8 **(1) self-propelled;**

9 **(2) designed for transporting people or property on a street or**
10 **highway; and**

11 **(3) certified by the vehicle's maker under all applicable**
12 **federal safety and emissions standards and requirements for**
13 **distribution and sale in the United States.**

14 **Sec. 2. As used in this chapter, "outdoor equipment" has the**
15 **meaning set forth in IC 36-1-3-1.8.**

16 **Sec. 3. A homeowners association's governing documents may**
17 **not include a covenant, policy, or similar measure that:**

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(1) prohibits or restricts the use of a motor vehicle or outdoor equipment;

(2) distinguishes:

(A) between types of motor vehicles; or

(B) between types of outdoor equipment; or

(3) results in:

(A) differing standards for different types of motor vehicles; or

(B) differing standards for different types of outdoor equipment;

based on the fuel source that powers the motor vehicle or outdoor equipment.

SECTION 2. IC 36-1-3-1.6 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 1.6. As used in this chapter, "machine" includes outdoor equipment.**

SECTION 3. IC 36-1-3-1.8 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 1.8. As used in this chapter, "outdoor equipment" means a mechanical device that:**

(1) is powered by a motor;

(2) is designed to be used outdoors for the purpose of facilitating or assisting in the performance of tasks associated with:

(A) home or lawn maintenance; or

(B) construction; and

(3) if self-propelled, is not permitted under IC 9 to be driven or operated on an interstate highway.

The term includes lawn mowers, powered lawn trimmers, and leaf blowers.

SECTION 4. IC 36-1-3-8.7 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: **Sec. 8.7. (a) As used in this section, "unit" means a county or a municipality.**

(b) As used in this section, "utility" means a utility, however organized, that provides utility service to customers in Indiana. The term includes a utility that is owned, operated, or held in trust by a consolidated city.

(c) As used in this section, "utility service" means:

(1) electric;

(2) natural gas;

(3) water; or



- 1 (4) wastewater;
 2 service that is provided at retail.
 3 (d) As used in this section, "utility usage data ordinance":
 4 (1) means an ordinance that is adopted by a unit and that
 5 requires:
 6 (A) the owner or tenant of a building; or
 7 (B) a utility providing utility service to a building;
 8 to report to the unit, or to any other party, whether directly
 9 or indirectly, data on the utility service used or consumed at
 10 a building during a specified reporting period; and
 11 (2) does not include an ordinance that authorizes or facilitates
 12 the voluntary reporting of data described in subdivision (1)
 13 by:
 14 (A) the owner or tenant of a building; or
 15 (B) a utility providing utility service to a building.
 16 (e) After March 15, 2026, a unit may not adopt or enforce a
 17 utility usage data ordinance.
 18 SECTION 5. IC 36-1-3-13, AS ADDED BY P.L.180-2021,
 19 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 20 JULY 1, 2026]: Sec. 13. (a) Unless required under IC 36-7-2-9, a unit
 21 does not have the power to do the following:
 22 (1) Require that a particular component, design, or type of
 23 material be used in the construction of a building or other
 24 structure because of the energy saving or energy producing
 25 qualities of the component, design, or material.
 26 (2) Prohibit the use of a particular component, design, or type of
 27 material in the construction of a building or other structure
 28 because the component, design, or material does not meet a
 29 standard for energy saving.
 30 (3) Require that a building or other structure be retrofitted with a
 31 particular device or type of material because of the energy saving
 32 or energy producing qualities of the device or material.
 33 (4) **Adopt an ordinance, order, regulation, resolution, policy,**
 34 **or similar measure that:**
 35 (A) ~~Prohibit prohibits or restrict restricts~~ the purchase or use
 36 of vehicles or ~~other machines~~ **other than vehicles;**
 37 (B) **distinguishes:**
 38 (i) between types of vehicles; or
 39 (ii) between types of machines other than vehicles; or
 40 (C) **results in:**
 41 (i) differing regulatory standards for different types of
 42 vehicles; or



(ii) differing regulatory standards for different types of machines other than vehicles;

based upon the type of energy that powers the vehicle or machine.

(5) Prohibit the sale, installation, or use of any of the following:

(A) Natural gas powered home heating equipment.

(B) Natural gas powered home appliances.

(C) Grills, stoves, and other food preparation appliances designed to be used outdoors.

(D) Natural gas powered:

(i) heating appliances; and

(ii) torches, lamps, and other decorative features;

designed to be used outdoors.

(6) Enact an ordinance, adopt a resolution, or enforce an ordinance or resolution that purports to exercise a power denied by subdivisions (1) through (5).

(b) This section does not apply to requirements included in procurement documents used to procure goods and services, including the construction or design of buildings, to be owned or used by the unit. A unit may adopt bid specifications for a public works project that include energy savings or energy production provisions with respect to the components, design, or materials for the specific project.

SECTION 6. IC 36-7-4-201.2 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 201.2. (a) This section applies to a political subdivision with local planning and zoning powers that:**

(1) is located within five (5) miles of the end of a runway of a publicly owned, public use airport that is classified as a primary, national, or regional airport by the Federal Aviation Administration, as shown on the airport's Federal Aviation Administration accepted airport master plan or airport layout plan; and

(2) has not adopted an airspace overlay zoning ordinance that complies with the requirements of subsection (c).

(b) Not later than July 1, 2028, the administration of the publicly owned, public use airport must provide the political subdivision with a draft airspace overlay zoning ordinance.

(c) Not later than one (1) year after the political subdivision receives the draft airspace overlay zoning ordinance required under subsection (b), the political subdivision shall adopt an airspace overlay zoning ordinance that:

(1) provides for compatible land use with respect to airport flight activities as specified in Federal Aviation



1 **Administration Advisory Circular 150/5190-4B; and**
2 **(2) is consistent with the requirements of IC 8-21-10-3 and 14**
3 **CFR 77 to address airspace protection.**
4 **SECTION 7. An emergency is declared for this act.**



COMMITTEE REPORT

Mr. Speaker: Your Committee on Roads and Transportation, to which was referred House Bill 1150, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 2, between lines 30 and 31, begin a new paragraph and insert:

"SECTION 4. IC 36-1-3-8.7 IS ADDED TO THE INDIANA CODE AS A **NEW SECTION TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]:** **Sec. 8.7. (a) As used in this section, "unit" means a county or a municipality.**

(b) As used in this section, "utility" means a utility, however organized, that provides utility service to customers in Indiana. The term includes a utility that is owned, operated, or held in trust by a consolidated city.

(c) As used in this section, "utility service" means:

- (1) electric;**
- (2) natural gas;**
- (3) water; or**
- (4) wastewater;**

service that is provided at retail.

(d) As used in this section, "utility usage data ordinance":

(1) means an ordinance that is adopted by a unit and that requires:

(A) the owner or tenant of a building; or

(B) a utility providing utility service to a building;

to report to the unit, or to any other party, whether directly or indirectly, data on the utility service used or consumed at a building during a specified reporting period; and

(2) does not include an ordinance that authorizes or facilitates the voluntary reporting of data described in subdivision (1) by:

(A) the owner or tenant of a building; or

(B) a utility providing utility service to a building.

(e) After March 15, 2026, a unit may not adopt or enforce a utility usage data ordinance."

Page 4, after line 16, begin a new paragraph and insert:

"SECTION 7. An emergency is declared for this act."

Re-number all SECTIONS consecutively.

and when so amended that said bill do pass.



(Reference is to HB 1150 as introduced.)

PRESSEL

Committee Vote: yeas 9, nays 4.

COMMITTEE REPORT

Mr. President: The Senate Committee on Homeland Security and Transportation, to which was referred House Bill No. 1150, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill DO PASS.

(Reference is to HB 1150 as printed January 12, 2026.)

CRIDER, Chairperson

Committee Vote: Yeas 6, Nays 1

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